

Defendant/Cross-Complainant, Palm 10, argues that Plaintiff's entire MOC must be stricken/taxed because Plaintiff is **not** the "prevailing party" in this action. In general, the prevailing party "is entitled *as a matter of right* to recover costs of suit in any action or proceeding. (Weil & Brown, CPG: Civil Trials and Evidence (TRG 2026) § 17:205 citing *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.) Where the requirements for a prevailing party are met, "the trial court has *no* discretion to order each party to bear their own costs of suit. (*Id.* citing *Michell v. Olick* (1996) 49 Cal.App.4th 1194, 1198.)

The term "prevailing party" is defined by statute to include: "The party with a *net monetary recovery*"; a defendant who is *dismissed* from the action; a defendant where *neither* plaintiff nor defendant recovers anything; and "[a] defendant as against those plaintiffs who do not recover any relief against that defendant." (*Id.* § 17:206.) "If the party does not fall into one of these four express categories, the court may exercise its *discretion* to award or deny costs. (*Id.* citing *Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 105.) This is the case even if the prevailing party obtains only partial recovery (e.g., prevails on only one of several causes of action.) (*Id.* § 17:208 citing *Vought Const. Inc. v. Stock* (2022) 84 Cal.App.5th 622, 635; *Michell, supra.* at 1199.) Notably, "plaintiff" includes cross-complainants and "defendant" includes cross-defendants. (*Id.* § 17:228.)

Here, the "Defense Judgment" was filed on 3/16/26, and entered on 3/24/26. It attaches the jury's verdict as Exhibit "A". As to Plaintiff's Complaint, the jury found no liability by Defendants, Palm 10, Harvey, and Desert Pacific Properties (DPP) to New Generation's Complaint. (Defense Judgment p. 17 of 21.) The jury also found no liability by New Generation as to Palm 10's Cross-Complaint. (*Ibid.*) The verdict further provided that New Generation "shall take nothing" from Palm 10, Harvey, and DPP for its claims asserted in its Complaint. (*Ibid.*) And, Palm 10 "shall take nothing" from New Generation. (*Ibid.*)

Palm 10 argues that both Plaintiff and Palm 10 sought the \$1.5 million in deposit and extension fees. Palm 10 asserts that it was the prevailing party on its Cross-Complaint because it obtained a "net monetary recovery" when the \$1.5 million was awarded to it. However, the verdict did not make any award to Palm 10. It merely provided that New Generation was "not entitled to a return of its deposits and/or extension fees." (*Id.* p. 19 of 22.) These circumstances do not indicate that Palm 10 obtained a "net monetary recovery" to make it the prevailing party.

Nonetheless, Palm 10 correctly argues that New Generation does not fit within any definition of "prevailing party." As such, it cannot be the "prevailing party" for purposes of costs here. Thus, New Generation is not entitled to costs as it is not the prevailing party and its MOC must be stricken in its entirety.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406737	PAQUIN VS UNITED EXPRESS TRUCKING, INC.	MOTION TO COMPEL PLAINTIFF'S APPEARANCE AT DEPOSITION BY UNITED FREIGHT SERVICE, INC.

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a vehicular collision case. On January 3, 2024, Plaintiff Daniel Paquin ("Plaintiff") was driving a FedEx Kenworth Tri-Axle vehicle with attached semi-trailers during the course and scope of his employment with FedEx. Defendant Eliseo Castaneda ("Castaneda") was driving a Freightliner Cascadia truck owned and operated by his employer, Defendant United Express Trucking ("UET") with a trailer owned by Defendant United Freight Services ("Defendant"). Plaintiff alleges that Castaneda's truck improperly veered into his lane and collided with Plaintiff's vehicle, causing it to overturn and slide into oncoming traffic. Plaintiff was trapped upside down until fire rescue arrived. Castaneda fled the scene of the accident.

Plaintiff filed his Complaint on October 21, 2024 and the operative First Amended Complaint on April 16, 2025. Plaintiff asserts four causes of action for: (1) Motor Vehicle; (2) General Negligence/Negligence Per Se; (3) Negligent Hiring/Retention; and (4) Strict Liability.

On May 11, 2026, Defendant served a deposition notice to take Plaintiff's deposition on June 15, 2026. On June 11, 2026, Plaintiff served objections indicating that he would not appear until after the deposition of Defendant's Person Most Qualified (PMQ).

Defendant now moves to compel Plaintiff's deposition. Defendant argues that it met and conferred with Plaintiff, but Plaintiff did not provide deposition dates. Defendant argues that there is no statutory basis to demand that the PMQ deposition take place before Plaintiff's deposition. Defendant argues that the objection was improper, and Plaintiff should have filed a motion for protective order or to quash the deposition notice. Defendant requests sanctions in the amount of \$1,155.00.

Plaintiff argues that the Motion is moot because counsel stated in writing that Plaintiff was available for deposition in early August. Plaintiff argues that the present Motion is a misuse of discovery filed to force a trial continuance to allow for its untimely Motion for Summary Judgment (MSJ). Plaintiff requests sanctions in the amount of \$1,500.

Motion to Compel Deposition

Any party may obtain discovery by taking the deposition of any person, including a party to the action. (CCP § 2025.010.) Pursuant to CCP §2025.450, if, after service of a deposition notice, a party to the action without having served a valid objection under Section 2025.410, fails to appear for examination, the party giving notice may move for an order compelling the deponent's attendance and testimony, and the production of any document, ESI or tangible thing described in the deposition notice. (CCP §2025.450(a).)

A motion to compel under section 2025.450 must be accompanied by a meet and confer declaration under Section 2016.040, or when the deponent fails to attend the deposition, by a declaration stating that the moving party has contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) Implicit in the requirement is that counsel make a good faith attempt to resolve the issue by rescheduling the deposition. (*Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th. 1109, 1124.) The meet and confer declaration must state facts showing that the parties made a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (CCP § 2016.040.)

On May 11, 2026, Defendant served a Notice of Taking the Videotaped Deposition of Plaintiff Daniel P. Paquin (“Deposition Notice”). (Decl. of Petrick, ¶ 8; Ex. A.) On June 11, 2026, Plaintiff served objections. (Id at ¶ 9; Ex. B.) Counsel asserts that she advised Plaintiff’s counsel that she would be forced to file a motion to compel if Plaintiff did not appear. (Id at ¶ 9.) However, there is no evidence that Defendant attempted to resolve the issues raised by Plaintiff’s objection. Nor does counsel indicate whether any additional deposition dates were provided. On June 11, 2026, Defendant took a notice of non-appearance. (Id at ¶ 11.)

Counsel for Plaintiff states that on July 15, 2026, prior to the filing of the present Motion on July 21, he sent a meet and confer letter to Defendant’s counsel advising him that Plaintiff would be available for deposition in early August. (Decl. of Zucker, ¶ 4; Ex. 1.) This correspondence was not mentioned in defense counsel’s declaration. Again, on July 24, 2026, Plaintiff’s counsel stated that the Motion was unnecessary because he had already agreed to produce Plaintiff for deposition in August. (Id at ¶ 5; Ex. B.) Plaintiff contends that defense counsel’s response to the July 24 letter indicates that the Motion was filed in retaliation for Plaintiff’s refusal to stipulate to a trial continuance. (Id.) Overall, the meet and confer in this case appears to have been insufficient.

Sanctions:

“If a motion [to compel deposition] is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent...unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §§2025.450(g)(1).) A responding party’s untimely response to discover does not divest the trial court of the authority to hear a motion to compel. (*Sinaiiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 407.)

Here, moving party was not successful. Sanctions are denied.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501786	PENICK VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES, SET ONE, BY ARLENE PENICK

Tentative Ruling: Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick (“Plaintiff”) slipped and fell at Defendant Eisenhower Medical Center (“Defendant”) causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to form interrogatories, set one from Defendant, which were served on January 8, 2026. Plaintiff’s counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).